

1 ENGROSSED HOUSE  
2 BILL NO. 3055

By: Hardin of the House

3 and

4 Wingard of the Senate  
5  
6

7 An Act relating to the Council on Law Enforcement  
8 Education and Training; amending 70 O.S. 2021,  
9 Section 3311, as last amended by Section 1, Chapter  
10 65, O.S.L. 2024 (70 O.S. Supp. 2025, Section 3311),  
11 which relates to the creation of the Council on Law  
12 Enforcement Education and Training; modifying  
13 qualifications of the Executive Director; and  
14 providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3311, as  
17 last amended by Section 1, Chapter 65, O.S.L. 2024 (70 O.S. Supp.  
18 2025, Section 3311), is amended to read as follows:

19 Section 3311. A. There is hereby created a Council on Law  
20 Enforcement Education and Training which shall be, and is hereby  
21 declared to be, a governmental law enforcement agency of the State  
22 of Oklahoma, body politic and corporate, with powers of government  
23 and with the authority to exercise the rights, privileges and  
24 functions necessary to ensure the professional training and  
continuing education of law enforcement officers in this state.

1 These rights, privileges and functions include, but are not limited  
2 to, those specified in Sections 3311 through 3311.15 of this title  
3 and in the Oklahoma Security Guard and Private Investigator Act and  
4 the Bail Enforcement and Licensing Act. The Council shall be  
5 authorized to require agency employees and the employees of agency  
6 contractors in positions to have access to Oklahoma Peace Officer  
7 records, Oklahoma Security Guard and Private Investigator records,  
8 Bail Enforcement and Licensing Act records, to be subject to a  
9 criminal history search by the Oklahoma State Bureau of  
10 Investigation, as well as be fingerprinted for submission of the  
11 fingerprints through the Oklahoma State Bureau of Investigation to  
12 the Federal Bureau of Investigation for a national criminal history  
13 check. The Council shall be the recipient of the results of the  
14 record check. In accordance with Section 150.9 of Title 74 of the  
15 Oklahoma Statutes, this includes a national criminal record with a  
16 finger print analysis. The Council shall be composed of thirteen  
17 (13) members as follows:

18 1. The Commissioner of the Department of Public Safety, or  
19 designee;

20 2. The Director of the Oklahoma State Bureau of Narcotics and  
21 Dangerous Drugs Control, or designee;

22 3. The Director of the Oklahoma State Bureau of Investigation,  
23 or designee;

24

1        4. One member appointed by the Governor who shall be a law  
2 enforcement administrator representing a tribal law enforcement  
3 agency;

4        5. One member appointed by the Governor who shall be a chief of  
5 police of a municipality with a population over one hundred thousand  
6 (100,000), as determined by the latest Federal Decennial Census;

7        6. One member appointed by the Board of Directors of the  
8 Oklahoma Sheriffs' Association who shall be a sheriff of a county  
9 with a population under twenty-five thousand (25,000), as determined  
10 by the latest Federal Decennial Census;

11       7. One member appointed by the Oklahoma Association of Chiefs  
12 of Police who shall be a chief of police representing a municipality  
13 with a population over ten thousand (10,000), as determined by the  
14 latest Federal Decennial Census;

15       8. One member shall be appointed by the Board of Directors of  
16 the Oklahoma Sheriffs' Association who shall be a sheriff of a  
17 county with a population of twenty-five thousand (25,000) or more,  
18 as determined by the latest Federal Decennial Census;

19       9. One member appointed by the Board of Directors of the  
20 Fraternal Order of Police who shall have experience as a training  
21 officer;

22       10. One member appointed by the Chancellor of Higher Education  
23 who shall be a representative of East Central University;  
24

1        11. One member appointed by the Board of Directors of the  
2 Oklahoma Sheriffs and Peace Officers Association who shall be a  
3 full-time law enforcement officer in good standing with CLEET within  
4 a county with a population under fifty thousand (50,000);

5        12. The President Pro Tempore of the Oklahoma State Senate  
6 shall appoint one member from a list of three or more nominees  
7 submitted by a statewide organization representing cities and towns  
8 that is exempt from taxation under federal law and designated  
9 pursuant to the provisions of the Internal Revenue Code, 26 U.S.C.,  
10 Section 170(a); and

11        13. The Speaker of the Oklahoma House of Representatives shall  
12 appoint one member from a list of three or more nominees submitted  
13 by an organization that assists in the establishment of  
14 accreditation standards and training programs for law enforcement  
15 agencies throughout this state.

16        The Executive Director selected by the Council shall be an ex  
17 officio member of the Council and shall act as Secretary. The  
18 Council on Law Enforcement Education and Training shall select a  
19 chair and vice-chair from among its members. Members of the Council  
20 on Law Enforcement Education and Training shall not receive a salary  
21 for duties performed as members of the Council, but shall be  
22 reimbursed for their actual and necessary expenses incurred in the  
23 performance of Council duties pursuant to the provisions of the  
24 State Travel Reimbursement Act.

1       B. The Council on Law Enforcement Education and Training is  
2 hereby authorized and directed to:

3       1. Appoint a larger Advisory Council to discuss problems and  
4 hear recommendations concerning necessary research, minimum  
5 standards, educational needs, and other matters imperative to  
6 upgrading Oklahoma law enforcement to professional status;

7       2. Promulgate rules with respect to such matters as  
8 certification, revocation, suspension, withdrawal and reinstatement  
9 of certification, minimum courses of study, testing and test scores,  
10 attendance requirements, equipment and facilities, minimum  
11 qualifications for instructors, minimum standards for basic and  
12 advanced in-service courses, and seminars for Oklahoma police and  
13 peace officers;

14       3. Authorize research, basic and advanced courses, and seminars  
15 to assist in program planning directly and through subcommittees;

16       4. Authorize additional staff and services necessary for  
17 program expansion;

18       5. Recommend legislation necessary to upgrade Oklahoma law  
19 enforcement to professional status;

20       6. Establish policies and regulations concerning the number,  
21 geographic and police unit distribution, and admission requirements  
22 of those receiving tuition or scholarship aid available through the  
23 Council. Such waiver of costs shall be limited to duly appointed  
24

1 members of legally constituted local, county, and state law  
2 enforcement agencies on the basis of educational and financial need;

3 7. Appoint an Executive Director to direct the staff, inform  
4 the Council of compliance with the provisions of this section and  
5 perform such other duties imposed on the Council by law. An  
6 Executive Director appointed by the Council ~~must~~ shall be certified  
7 as a peace officer in this state by CLEET. The Executive Director  
8 shall qualify for the position with a bachelor or higher degree in  
9 law enforcement from an accredited college or university, or a  
10 bachelor or higher degree in a law-enforcement-related subject area,  
11 and a minimum of five (5) years of active law enforcement experience  
12 including, but not limited to, responsibility for enforcement,  
13 investigation, administration, training, or curriculum  
14 implementation.

15 The Executive Director of the Council on Law Enforcement  
16 Education and Training may hire an Assistant Director to perform  
17 such duties as directed by the Executive Director.

18 The Executive Director of the Council on Law Enforcement  
19 Education and Training may commission CLEET staff as peace officers  
20 for purposes consistent with the duties of CLEET as set out in state  
21 law. The powers and duties conferred on the Executive Director or  
22 any staff member appointed by the Executive Director as a peace  
23 officer shall not limit the powers and duties of other peace  
24 officers of this state or any political subdivision thereof. The

1 Executive Director or any staff member appointed by the Executive  
2 Director as a peace officer may, upon request, assist any federal,  
3 state, county or municipal law enforcement agency;

4 8. Enter into contracts and agreements for the payment of  
5 classroom space, food, and lodging expenses as may be necessary for  
6 law enforcement officers attending any official course of  
7 instruction approved or conducted by the Council. Such expenses may  
8 be paid directly to the contracting agency or business  
9 establishment. The food and lodging expenses for each law  
10 enforcement officer shall not exceed the authorized rates as  
11 provided for in the State Travel Reimbursement Act; provided,  
12 however, the Council may provide food and lodging to law enforcement  
13 officials attending any official course of instruction approved or  
14 conducted by the Council rather than paying for the provision of  
15 such food and lodging by an outside contracting agency or business  
16 establishment;

17 9. a. Certify canine teams, consisting of a dog and a  
18 handler working together as a team, trained to detect:  
19 (1) controlled dangerous substances, or  
20 (2) explosives, explosive materials, explosive  
21 devices, or materials which could be used to  
22 construct an explosive device;  
23 provided, the dog of a certified canine team shall not  
24 be certified at any time as both a drug dog and a bomb

1 dog, and any dog of a certified canine team who has  
2 been previously certified as either a drug dog or a  
3 bomb dog shall not be eligible at any time to be  
4 certified in the other category.

5 b. Upon retiring the dog from the service it was  
6 certified to perform, the law enforcement department  
7 that handled the dog shall retain possession of the  
8 dog. The handler shall have first option of adopting  
9 the dog. If that option is not exercised, the law  
10 enforcement department shall provide for its adoption.  
11 Once adopted the dog shall not be placed back into  
12 active service;

13 10. Enter into a lease, loan or other agreement with the  
14 Oklahoma Development Finance Authority or a local public trust for  
15 the purpose of facilitating the financing of a new facility for its  
16 operations and use and pledge, to the extent authorized by law, all  
17 or a portion of its receipts of the assessment penalty herein  
18 referenced for the payment of its obligations under such lease, loan  
19 or other agreement. It is the intent of the Legislature to increase  
20 the assessment penalty to such a level or appropriate sufficient  
21 monies to the Council on Law Enforcement Education and Training to  
22 make payments on the lease, loan or other agreement for the purpose  
23 of retiring the bonds to be issued by the Oklahoma Development  
24 Finance Authority or local public trust. Such lease, loan or other



1 agreement and the bonds issued to finance such facilities shall not  
2 constitute an indebtedness of this state or be backed by the full  
3 faith and credit of this state, and the lease, loan or other  
4 agreement and the bonds shall contain a statement to such effect;

5 11. Accept gifts, bequests, devises, contributions and grants,  
6 public or private, of real or personal property;

7 12. Appoint an advisory committee composed of representatives  
8 from security guard and private investigative agencies to advise the  
9 Council concerning necessary research, minimum standards for  
10 licensure, education, and other matters related to licensure of  
11 security guards, security guard agencies, private investigators, and  
12 private investigative agencies;

13 13. Enter into agreements with individuals, educational  
14 institutions, agencies, and business and tribal entities for  
15 professional services, the use of facilities and supplies, and staff  
16 overtime costs incurred as a result of the user's requests to  
17 schedule functions after-hours, on weekends, or anytime such  
18 requests extend staff beyond its normal capacity, whereby  
19 contracting individuals, educational institutions, agencies, and  
20 business and tribal entities shall pay a fee to be determined by the  
21 Council by rule. All fees collected pursuant to facilities usage  
22 shall be deposited to the credit of the C.L.E.E.T. Training Center  
23 Revolving Fund created pursuant to Section 3311.6 of this title.  
24 All other fees collected pursuant to these agreements shall be

1 deposited to the credit of the Peace Officer Revolving Fund created  
2 pursuant to Section 3311.7 of this title. The Council is authorized  
3 to promulgate emergency rules to effectuate the provisions of this  
4 paragraph;

5 14. Promulgate rules to establish a state firearms  
6 requalification standard for active peace officers and meet any  
7 requirements imposed on the Council by the federal Law Enforcement  
8 Officers Safety Act of 2004;

9 15. Set minimal criteria relating to qualifications for chief  
10 of police administrative training pursuant to Section 34-102 of  
11 Title 11 of the Oklahoma Statutes, assist in developing a course of  
12 training for a Police Chief Administrative School, and approve all  
13 police chief administrative training offered in this state;

14 16. Appoint a Curriculum Review Board to be composed of six (6)  
15 members as follows:

- 16 a. one member shall be selected by the Chancellor for  
17 Higher Education, who possesses a background of  
18 creation and review of curriculum and experience  
19 teaching criminal justice or law enforcement courses,  
20 who shall serve an initial term of one (1) year,  
21 b. one member shall represent a municipal jurisdiction  
22 with a population of fifty thousand (50,000) or more  
23 and who shall be a management-level CLEET-certified  
24

1 training officer, who shall serve an initial term of  
2 two (2) years,

3 c. one member shall represent a county jurisdiction with  
4 a population of fifty thousand (50,000) or more and  
5 who shall be a management-level CLEET-certified  
6 training officer, who shall serve an initial term of  
7 three (3) years,

8 d. one member shall represent a municipal jurisdiction  
9 with a population of less than fifty thousand (50,000)  
10 and who shall be a CLEET-certified training officer,  
11 who shall serve an initial term of two (2) years,

12 e. one member shall represent a county jurisdiction with  
13 a population of less than fifty thousand (50,000) and  
14 who shall be a CLEET-certified training officer, who  
15 shall serve an initial term of one (1) year, and

16 f. one member selected by the Oklahoma Department of  
17 Career and Technology, who shall have experience in  
18 the creation and review of curriculum as well as  
19 experience in teaching criminal justice or law  
20 enforcement courses, who shall serve an initial term  
21 of three (3) years.

22 After the initial terms of office, all members shall be  
23 appointed to serve three-year terms. Any member may be reappointed  
24 to serve consecutive terms. Members shall serve without

1 compensation, but may be reimbursed for travel expenses pursuant to  
2 the State Travel Reimbursement Act. The Board shall review and  
3 establish curriculum for all CLEET academies and training courses  
4 pursuant to procedures established by the Council on Law Enforcement  
5 Education and Training;

6 17. Conduct review and verification of any records relating to  
7 the statutory duties of CLEET;

8 18. Receive requested reports including investigative reports,  
9 court documents, statements, or other applicable information from  
10 local, county and state agencies and other agencies for use in  
11 actions where a certification or license issued by CLEET may be  
12 subject to disciplinary or other actions provided by law;

13 19. Summarily suspend a certification of a peace officer,  
14 without prior notice but otherwise subject to administrative  
15 proceedings, if CLEET finds that the actions of the certified peace  
16 officer may present a danger to the peace officer, the public, a  
17 family or household member, or involve a crime against a minor. A  
18 certified copy of the information or indictment charging such a  
19 crime shall be considered clear and convincing evidence of the  
20 charge; and

21 20. Approve law enforcement agencies and police departments in  
22 accordance with the following:

- 23 a. this section applies only to an entity authorized by  
24 statute or by the Constitution to create a law

1 enforcement agency or police department and  
2 commission, appoint, or employ officers that first  
3 creates or reactivates an inactive law enforcement  
4 agency or police department and first begins to  
5 commission, appoint, or employ officers on or after  
6 November 1, 2011,

7 b. the entity shall submit to CLEET, a minimum of sixty  
8 (60) days prior to creation of the law enforcement  
9 agency or police department, information regarding:

10 (1) the need for the law enforcement agency or police  
11 department in the community,

12 (2) the funding sources for the law enforcement  
13 agency or police department, and proof that no  
14 more than fifty percent (50%) of the funding of  
15 the entity will be derived from ticket revenue or  
16 fines,

17 (3) the physical resources available to officers,

18 (4) the physical facilities that the law enforcement  
19 agency or police department will operate  
20 including descriptions of the evidence room,  
21 dispatch area, restroom facilities, and public  
22 area,

- (5) law enforcement policies of the law enforcement agency or police department including published policies on:
- (a) use of force,
  - (b) vehicle pursuit,
  - (c) mental health,
  - (d) professional conduct of officers,
  - (e) domestic abuse,
  - (f) response to missing persons,
  - (g) supervision of part-time officers, and
  - (h) impartial policing,
- (6) the administrative structure of the law enforcement agency or police department,
- (7) liability insurance, and
- (8) any other information CLEET requires by rule,
- c. within sixty (60) days of receiving an entity's request, CLEET will forward to the entity by certified mail, return receipt requested, a letter of authorization or denial to create a law enforcement agency or police department and commission, appoint, or employ officers, signed by the Executive Director of CLEET, and
- d. in cases of denial, the entity may appeal the decision of the Executive Director to the full CLEET Council.

1           The Executive Director shall ensure that the final  
2           report is provided to all members of the Council. The  
3           Council shall review and make recommendations  
4           concerning the report at the first meeting of the  
5           Council to occur after all members of the Council have  
6           received the report. The Council may, by majority  
7           vote:

8           (1) order additional information be provided,

9           (2) order confirmation of the opinion of the  
10           Executive Director, or

11           (3) order authorization of the entity.

12           C. 1. Payment of any fee provided for in this section may be  
13           made by a nationally recognized credit or debit card issued to the  
14           applicant. The Council may publicly post and collect a fee for the  
15           acceptance of the nationally recognized credit or debit card not to  
16           exceed five percent (5%) of the amount of the payment. For purposes  
17           of this subsection, "nationally recognized credit card" means any  
18           instrument or device, whether known as a credit card, credit plate,  
19           charge plate, or by any other name, issued with or without fee by an  
20           issuer for the use of the cardholder in obtaining goods, services,  
21           or anything else of value and which is accepted by over one thousand  
22           merchants in this state. "Debit card" means an identification card  
23           or device issued to a person by a business organization which  
24           permits such person to obtain access to or activate a consumer

1 banking electronic facility. The Council shall determine which  
2 nationally recognized credit or debit cards will be accepted as  
3 payment for fees.

4 2. Payment for any fee provided for in this title may be made  
5 by a business check. The Council may:

6 a. add an amount equal to the amount of the service  
7 charge incurred, not to exceed three percent (3%) of  
8 the amount of the check as a service charge for the  
9 acceptance and verification of the check, or

10 b. add an amount of no more than Five Dollars (\$5.00) as  
11 a service charge for the acceptance and verification  
12 of a check. For purposes of this subsection,  
13 "business check" shall not mean a money order,  
14 cashier's check, or bank-certified check.

15 D. Failure of the Legislature to appropriate necessary funds to  
16 provide for expenses and operations of the Council on Law  
17 Enforcement Education and Training shall not invalidate other  
18 provisions of this section relating to the creation and duties of  
19 the Council.

20 E. 1. No person shall be eligible for employment as a peace  
21 officer or reserve peace officer until the employing law enforcement  
22 agency has conducted a background investigation of such person  
23 consisting of the following:  
24



- a. a fingerprint search submitted to the Oklahoma State Bureau of Investigation with a return report to the submitting agency that such person has no felony record,
- b. a fingerprint search submitted to the Federal Bureau of Investigation with a return report to the submitting agency that such person has no felony record,
- c. such person has undergone psychological evaluation by a psychologist licensed by the State of Oklahoma and has been evaluated to be suitable to serve as a peace officer in the State of Oklahoma,
- d. the employing agency has verified that such person has a high school diploma or a GED equivalency certificate as recognized by state law,
- e. such person is not participating in a deferred sentence agreement for a felony, a crime involving moral turpitude or a crime of domestic violence, and does not have any criminal charges pending in any court in this state, another state, in tribal court or pursuant to the United States Code,
- f. such person is not currently subject to an order of the Council revoking, suspending, or accepting a voluntary surrender of peace officer certification,

1           g.    such person is not currently undergoing treatment for  
2               a mental illness, condition or disorder. For purposes  
3               of this subsection, "currently undergoing treatment  
4               for mental illness, condition or disorder" means the  
5               person has been diagnosed by a licensed physician,  
6               psychologist, or licensed mental health professional  
7               as being afflicted with a substantial disorder of  
8               thought, mood, perception, psychological orientation  
9               or memory that significantly impairs judgment,  
10              behavior, capacity to recognize reality, or ability to  
11              meet the ordinary demands of life and such condition  
12              continues to exist,

13          h.    such person is twenty-one (21) years of age.  
14               Provided, this requirement shall not affect those  
15               persons who are already employed as a police or peace  
16               officer prior to November 1, 1985, and

17          i.    such person has provided proof of United States  
18               citizenship or resident alien status, pursuant to an  
19               employment eligibility verification form from the  
20               United States Citizenship and Immigration Services.

21          2.    To aid the evaluating psychologist in interpreting the test  
22               results including automated scoring and interpretations, the  
23               employing agency shall provide the psychologist a statement  
24               confirming the identity of the individual taking the test as the

1 person who is employed or seeking employment as a peace officer of  
2 the agency and attesting that it administered the psychological  
3 instrument in accordance with standards within the test document.  
4 The psychologist shall report to the employing agency the evaluation  
5 of the assessment instrument and may include any additional  
6 recommendations to assist the employing agency in determining  
7 whether to certify to the Council on Law Enforcement Education and  
8 Training that the person being evaluated is suitable to serve as a  
9 peace officer in this state. No additional procedures or  
10 requirements shall be imposed for performance of the psychological  
11 evaluation. The psychological instrument utilized shall be  
12 evaluated by a psychologist licensed by the State of Oklahoma, and  
13 the employing agency shall certify to the Council that the  
14 evaluation was conducted in accordance with this provision and that  
15 the employee or applicant is suitable to serve as a peace officer in  
16 this state.

- 17       a. Any person found not to be suitable for employment or  
18       certification by the Council shall not be employed,  
19       retained in employment as a peace officer, or  
20       certified by the Council for at least one (1) year, at  
21       which time the employee or applicant may be  
22       reevaluated by a psychologist licensed by the State of  
23       Oklahoma. This section shall also be applicable to  
24       all reserve peace officers in this state.

- 1           b. Any person who is certified by CLEET and has undergone  
2           the psychological evaluation required by this  
3           subparagraph and has been found to be suitable as a  
4           peace officer shall not be required to be reevaluated  
5           for any subsequent employment as a peace officer  
6           following retirement or any break in service as a  
7           peace officer, unless such break in service exceeds  
8           five (5) years or the Council determines that a peace  
9           officer may present a danger to himself or herself,  
10          the public, or a family or household member.
- 11          c. All persons seeking certification shall have their  
12          name, gender, date of birth, and address of such  
13          person submitted to the Department of Mental Health  
14          and Substance Abuse Services by the Council. The  
15          Department of Mental Health and Substance Abuse  
16          Services shall respond to the Council within ten (10)  
17          days whether the computerized records of the  
18          Department indicate the applicant has ever been  
19          involuntarily committed to an Oklahoma state mental  
20          institution. In the event that the Department of  
21          Mental Health and Substance Abuse Services reports to  
22          the Council that the applicant has been involuntarily  
23          committed, the Council shall immediately inform the  
24          employing agency.

1 All basic police courses shall include a minimum of four (4)  
2 hours of education and training in recognizing and managing a person  
3 appearing to require mental health treatment or services. The  
4 training shall include training in crime and drug prevention, crisis  
5 intervention, youth and family intervention techniques, recognizing,  
6 investigating and preventing abuse and exploitation of elderly  
7 persons, mental health issues, and criminal jurisdiction on  
8 Sovereign Indian Land.

9 Subject to the availability of funding, for full-time salaried  
10 police or peace officers a basic police course academy shall consist  
11 of a minimum of six hundred (600) hours.

12 For reserve deputies a basic reserve academy shall consist of a  
13 minimum of two hundred forty (240) hours.

14 3. Beginning January 1, 2018, any reserve peace officer who has  
15 completed the two-hundred-forty-hour reserve peace officer  
16 certification program and who has been in active service in that  
17 capacity for the past six (6) months shall be eligible to attend a  
18 three-hundred-sixty-hour basic full-time training academy to become  
19 certified as a full-time peace or police officer.

20 4. Every person who has not been certified as a police or peace  
21 officer and is duly appointed or elected as a police or peace  
22 officer shall hold such position on a temporary basis only, and  
23 shall, within six (6) months from the date of appointment or taking  
24 office, qualify as required in this subsection or forfeit such

1 position. In computing the time for qualification, all service  
2 shall be cumulative from date of first appointment or taking office  
3 as a police or peace officer with any department in this state.

4       a. The Council may extend the time requirement specified  
5       in this paragraph for good cause as determined by the  
6       Council.

7       b. A duty is hereby imposed upon the employing agency to  
8       withhold payment of the compensation or wage of such  
9       unqualified officer.

10      c. If the police or peace officer fails to forfeit the  
11      position or the employing agency fails to require the  
12      officer to forfeit the position, the district attorney  
13      shall file the proper action to cause the forfeiting  
14      of such position. The district court of the county  
15      where the officer is employed shall have jurisdiction  
16      to hear the case.

17      5. The Council may certify officers who have completed a course  
18      of study in another state deemed by the Council to meet standards  
19      for Oklahoma peace officers providing the officer's certification in  
20      the other state has not been revoked or voluntarily surrendered and  
21      is not currently under suspension.

22      6. For purposes of this section, a police or peace officer is  
23      defined as a full-time duly appointed or elected officer who is paid  
24      for working more than twenty-five (25) hours per week and whose

1 duties are to preserve the public peace, protect life and property,  
2 prevent crime, serve warrants, transport prisoners, and enforce laws  
3 and ordinances of this state, or any political subdivision thereof;  
4 provided, elected sheriffs and their deputies and elected,  
5 appointed, or acting chiefs of police shall meet the requirements of  
6 this subsection within the first six (6) months after assuming the  
7 duties of the office to which they are elected or appointed or for  
8 which they are an acting chief; provided further, that this section  
9 shall not apply to persons designated by the Director of the  
10 Department of Corrections as peace officers pursuant to Section 510  
11 of Title 57 of the Oklahoma Statutes.

12 F. No person shall be certified as a police or peace officer by  
13 the Council or be employed by the state, a county, a city, or any  
14 political subdivision thereof, who is currently subject to an order  
15 of the Council revoking, suspending, or accepting a voluntary  
16 surrender of peace officer certification or who has been convicted  
17 of a felony, a crime involving moral turpitude, or a crime of  
18 domestic violence, unless a full pardon has been granted by the  
19 proper agency; however, any person who has been trained and  
20 certified by the Council on Law Enforcement Education and Training  
21 and is actively employed as a full-time peace officer as of November  
22 1, 1985, shall not be subject to the provisions of this subsection  
23 for convictions occurring prior to November 1, 1985.

1       G. 1. The Council is hereby authorized to provide to any  
2       employing agency the following information regarding a person who is  
3       or has applied for employment as a police or peace officer of such  
4       employing agency:

5             a. Oklahoma State Bureau of Investigation and Federal  
6             Bureau of Investigation reports,

7             b. administration of the psychological tests provided for  
8             herein,

9             c. performance in the course of study or other basis of  
10            certification,

11            d. previous certifications issued, and

12            e. any administrative or judicial determination denying  
13            certification.

14       2. An employing agency shall not be liable in any action  
15       arising out of the release of contents of personnel information  
16       relevant to the qualifications or ability of a person to perform the  
17       duties of a police or peace officer when such information is  
18       released pursuant to written authorization for release of  
19       information signed by such person and is provided to another  
20       employing agency which has employed or has received an application  
21       for employment from such person.

22       3. As used in this subsection, "employing agency" means a  
23       political subdivision or law enforcement agency which either has  
24



1 employed or received an employment application from a person who, if  
2 employed, would be subject to this section.

3 H. 1. A law enforcement agency employing police or peace  
4 officers in this state shall report the hiring, resignation, or  
5 termination for any reason of a police or peace officer to the  
6 Council within ten (10) days. Failure to comply with the provisions  
7 of this subsection may disqualify a law enforcement agency from  
8 participating in training programs sponsored by the Council. Every  
9 law enforcement agency employing police or peace officers in this  
10 state shall submit to CLEET on or before October 1 of each calendar  
11 year a complete list of all commissioned employees with a current  
12 mailing address and phone number for each such employee. In  
13 addition to the above, CLEET may impose an administrative fine for  
14 violations of this section.

15 2. A tribal law enforcement agency that has peace officers  
16 commissioned by an Oklahoma law enforcement agency pursuant to a  
17 cross-deputization agreement with the State of Oklahoma or any  
18 political subdivision of the State of Oklahoma pursuant to the  
19 provisions of Section 1221 of Title 74 of the Oklahoma Statutes  
20 shall report the commissioning, resignation, or termination of  
21 commission for any reason of a cross-deputized tribal police or  
22 peace officer to CLEET within ten (10) days of the commissioning,  
23 resignation, or termination. Failure to comply with the provisions  
24

1 of this subsection may disqualify a tribal law enforcement agency  
2 from participating in training programs sponsored by the Council.

3 I. It is unlawful for any person to willfully make any  
4 statement in an application to CLEET knowing the statement is false  
5 or intentionally commit fraud in any application to the Council for  
6 attendance in any CLEET-conducted or CLEET-approved peace officer  
7 academy or Collegiate Officer Program or for the purpose of  
8 obtaining peace officer certification or reinstatement. It is  
9 unlawful for any person to willfully submit false or fraudulent  
10 documents relating to continuing education rosters, transcripts or  
11 certificates, or any canine license application. Any person  
12 convicted of a violation of this subsection shall be guilty of a  
13 felony punishable by imprisonment in the Department of Corrections  
14 for a term of not less than two (2) years nor more than five (5)  
15 years, or by a fine not exceeding Two Thousand Dollars (\$2,000.00),  
16 or by both such fine and imprisonment. In addition to the above,  
17 CLEET may impose an administrative fine.

18 J. 1. A police or peace officer shall be subject to  
19 disciplinary action to include a denial, suspension, revocation or  
20 acceptance of voluntary surrender of peace officer certification  
21 upon a showing of clear and convincing evidence for the following:

- 22 a. conviction of a felony or a crime of domestic  
23 violence,  
24

- 1           b.   conviction of a misdemeanor involving moral turpitude;  
2           provided, if the conviction is a single isolated  
3           incident that occurred more than five (5) years ago  
4           and the Council is satisfied that the person has been  
5           sufficiently rehabilitated, the Council may, in its  
6           discretion, certify such person providing that all  
7           other statutory requirements have been met,
- 8           c.   a verdict of guilt or entry of a plea of guilty or  
9           nolo contendere or an "Alford" plea or any plea other  
10          than a not guilty plea for a felony offense, a crime  
11          of moral turpitude, or a crime of domestic violence,
- 12          d.   falsification or a willful misrepresentation of  
13          information in an employment application or  
14          application to the Council on Law Enforcement  
15          Education and Training, records of evidence, or in  
16          testimony under oath,
- 17          e.   revocation or voluntary surrender of police or peace  
18          officer certification in another state for a violation  
19          of any law or rule or in settlement of any  
20          disciplinary action in such state,
- 21          f.   involuntary commitment of a reserve or peace officer  
22          in a mental institution or licensed private mental  
23          health facility for any mental illness, condition or  
24          disorder that is diagnosed by a licensed physician,

1 psychologist or a licensed mental health professional  
2 as a substantial disorder of thought, mood,  
3 perception, psychological orientation, or memory that  
4 significantly impairs judgment, behavior, capacity to  
5 recognize reality, or ability to meet the ordinary  
6 demands of life. Provided, the peace officer  
7 certification may be reinstated upon the Council  
8 receiving notification of a psychological evaluation  
9 conducted by a licensed physician, psychologist or  
10 licensed mental health professional which attests and  
11 states by affidavit that the officer and the  
12 evaluation test data of the officer have been examined  
13 and that, in the professional opinion of the  
14 physician, psychologist or licensed mental health  
15 professional, the officer is psychologically suitable  
16 to return to duty as a peace officer. Notwithstanding  
17 any other provision of state law pertaining to  
18 confidentiality of hospital or other medical records,  
19 and as allowable under federal law, CLEET may subpoena  
20 or request a court to subpoena records necessary to  
21 assure compliance with these provisions. Any  
22 confidential information received by CLEET for such  
23 purpose shall retain its confidential character while  
24 in the possession of CLEET,

1           g.    abuse of office,

2           h.    entry of a final order of protection against applicant  
3                or officer, or

4           i.    any violation of the Oklahoma Private Security  
5                Licensing Act.

6           2.   Disciplinary proceedings shall be commenced by filing a  
7   complaint with the Council on a form approved by the Council. Any  
8   employing agency or other person having information may submit such  
9   information to the Council for consideration as provided in this  
10   subsection.

11          3.   Upon the filing of the complaint, a preliminary  
12   investigation shall be conducted to determine whether:

13           a.   there is reason to believe the person has violated any  
14                provision of this subsection or any other provision of  
15                law or rule, or

16           b.   there is reason to believe the person has been  
17                convicted of a felony, a crime involving moral  
18                turpitude or a domestic violence offense or is  
19                currently participating in a deferred sentence for  
20                such offenses.

21          4.   When the investigation of a complaint does not find the  
22   person has violated any of the provisions of this subsection, or  
23   finds that the person is sufficiently rehabilitated as provided in  
24   subparagraph b or f of paragraph 1 of this subsection, no

1 disciplinary action shall be required and the person shall remain  
2 certified as a police or peace officer. When the investigation of a  
3 complaint finds that the person has violated any of the provisions  
4 of this subsection, the matter shall be referred for disciplinary  
5 proceedings. The disciplinary proceedings shall be in accordance  
6 with Articles I and II of the Administrative Procedures Act.

7 5. The Council shall revoke the certification of any person  
8 upon determining that such person has been convicted of a felony or  
9 a crime involving moral turpitude or a domestic violence offense or  
10 has entered a plea of guilty, or nolo contendere or an "Alford" plea  
11 or any plea other than a not guilty plea for a felony offense, a  
12 crime of moral turpitude or a crime of domestic violence or is the  
13 respondent in a final victim protective order; provided, that if the  
14 conviction has been reversed, vacated or otherwise invalidated by an  
15 appellate court, such conviction shall not be the basis for  
16 revocation of certification; provided further, that any person who  
17 has been trained and certified by the Council on Law Enforcement  
18 Education and Training and is actively employed as a full-time peace  
19 officer as of November 1, 1985, shall not be subject to the  
20 provisions of this subsection for convictions occurring prior to  
21 November 1, 1985. The sole issue to be determined at the hearing  
22 shall be whether the person has been convicted of a felony, a crime  
23 involving moral turpitude or a domestic violence offense or is the  
24 named respondent/defendant in a final victim protective order.

1       6. The Council shall revoke the certification of any person  
2 upon determining that such person has received a deferred sentence  
3 for a felony, a crime involving moral turpitude or a domestic  
4 violence offense.

5       7. The Council may suspend the certification of any person upon  
6 a determination that such person has been involuntarily committed to  
7 a mental institution or mental health facility for a mental illness,  
8 condition or disorder as provided in subparagraph f of paragraph 1  
9 of this subsection.

10       8. Every law enforcement agency in this state shall, within  
11 thirty (30) days of a final order of termination or resignation  
12 while under investigation of a CLEET-certified peace officer, report  
13 such order or resignation in writing to the Executive Director of  
14 the Council. Any report, upon receipt by the Council, shall be  
15 considered as personnel records and shall be afforded confidential  
16 protection pursuant to Sections 24A.7 and 24A.8 of Title 51 of the  
17 Oklahoma Statutes. Any medical or other confidential records  
18 obtained by subpoena pursuant to this subsection shall not be made a  
19 part of such report. The Executive Director shall ensure that the  
20 report is provided to all members of the Council. The Council shall  
21 review and make recommendations concerning the report at the first  
22 meeting of the Council to occur after all members of the Council  
23 have received the report. The Council may, by a majority vote,  
24 order the suspension, for a given period of time, or revocation of

1 the CLEET certification of the peace officer in question if there  
2 are grounds for such actions pursuant to this section and the peace  
3 officer in question has been provided with notice and an opportunity  
4 for a hearing pursuant to the Administrative Procedures Act.  
5 Suspension or revocation of CLEET certification pursuant to this  
6 paragraph shall be reported to the district attorney for the  
7 jurisdiction in which the peace officer was employed, to the  
8 liability insurance company of the law enforcement agency that  
9 employed the peace officer, the chief elected official of the  
10 governing body of the law enforcement agency and the chief law  
11 enforcement officer of the law enforcement agency.

12 9. For all other violations of this subsection, the hearing  
13 examiner shall take into consideration the severity of the  
14 violation, any mitigating circumstances offered by the person  
15 subject to disciplinary action, and any other evidence relevant to  
16 the person's character to determine the appropriate disciplinary  
17 action.

18 10. a. A police or peace officer may voluntarily surrender  
19 and relinquish the peace officer certification to  
20 CLEET. Pursuant to such surrender or relinquishment,  
21 the person surrendering the certification shall be  
22 prohibited from applying to CLEET for reinstatement  
23 within five (5) years of the date of the surrender or  
24



1           relinquishment, unless otherwise provided by law for  
2           reinstatement.

3           b. No person who has had a police or peace officer  
4           certification from another state revoked or  
5           voluntarily surrendered and has not been reinstated by  
6           that state shall be considered for certification by  
7           CLEET.

8           c. Any person seeking reinstatement of police or peace  
9           officer certification which has been suspended,  
10          revoked, or voluntarily surrendered may apply for  
11          reinstatement pursuant to promulgated CLEET rules  
12          governing reinstatement. Except as provided in this  
13          subsection, any person whose certification has been  
14          revoked, suspended or voluntarily surrendered for any  
15          reason including failure to comply with mandatory  
16          education and training requirements, shall pay a  
17          reinstatement fee of One Hundred Fifty Dollars  
18          (\$150.00) to be deposited to the credit of the Peace  
19          Officer Revolving Fund created pursuant to Section  
20          3311.7 of this title.

21          11. A duty is hereby imposed upon the district attorney who, on  
22          behalf of the State of Oklahoma, prosecutes a person holding police  
23          or peace officer or reserve peace officer certification for a  
24          felony, a crime involving moral turpitude, or a crime of domestic

1 violence in which a plea of guilty, nolo contendere, or an "Alford"  
2 plea or any other plea other than a not guilty plea or other finding  
3 of guilt is entered by, against or on behalf of a certified police  
4 or peace officer to report such plea, agreement, or other finding of  
5 guilt to the Council on Law Enforcement Education and Training  
6 within ten (10) days of such plea agreement or the finding of guilt.

7 12. Any person or agency required or authorized to submit  
8 information pursuant to this section to the Council shall be immune  
9 from liability arising from the submission of the information as  
10 long as the information was submitted in good faith and without  
11 malice.

12 13. Any peace officer employed by a law enforcement agency in  
13 this state which has internal discipline policies and procedures on  
14 file with CLEET shall be exempt from the disciplinary proceedings  
15 and actions provided for in this subsection; provided, however, such  
16 exemption shall not apply if the peace officer has been convicted of  
17 a felony crime, a crime of moral turpitude, or a crime of domestic  
18 violence.

19 14. All criminal proceedings initiated against a CLEET-  
20 certified peace officer or reserve peace officer shall be reported  
21 by the officer to CLEET immediately after arrest or discovery of the  
22 filing of such criminal proceeding. All CLEET-certified peace  
23 officers and reserve peace officers shall be required to report when  
24 a victim protective order has been issued against the officer

1 including orders issued on an emergency basis and all final orders  
2 of protection. Failure to give notice pursuant to the provisions of  
3 this paragraph may be cause to initiate an action against the  
4 officer by CLEET.

5 15. As used in this subsection:

6 a. "law enforcement agency" means any department or  
7 agency of the state, a county, a municipality, or  
8 political subdivision thereof, with the duties to  
9 maintain public order, make arrests, and enforce the  
10 criminal laws of this state or municipal ordinances,  
11 which employs CLEET-certified personnel,

12 b. "final order of termination" means a final notice of  
13 dismissal from employment provided after all  
14 grievance, arbitration, and court actions have been  
15 completed, and

16 c. "resignation while under investigation" means the  
17 resignation from employment of a peace officer who is  
18 under investigation for any felony violation of law, a  
19 crime of moral turpitude, a crime of domestic  
20 violence, or the resignation from employment of a  
21 peace officer as part of an arbitration or plea  
22 agreement.

23 K. 1. Every canine team in the state trained to detect  
24 controlled dangerous substances shall be certified, by test, in the

1 detection of such controlled dangerous substances and shall be  
2 recertified annually so long as the canine is used for such  
3 detection purposes. The certification test and annual  
4 recertification test provisions of this subsection shall not be  
5 applicable to canines that are owned by a law enforcement agency and  
6 that are certified and annually recertified in the detection of  
7 controlled dangerous substances by the United States Customs  
8 Service. No employee of CLEET may be involved in the training or  
9 testing of a canine team.

10 2. The Council shall appoint a Drug Dog Advisory Council to  
11 make recommendations concerning minimum standards, educational  
12 needs, and other matters imperative to the certification of canines  
13 and canine teams trained to detect controlled dangerous substances.  
14 The Council shall promulgate rules based upon the recommendations of  
15 the Advisory Council. Members of the Advisory Council shall  
16 include, but need not be limited to, a commissioned officer with  
17 practical knowledge of such canines and canine teams from each of  
18 the following:

- 19 a. the Oklahoma State Bureau of Narcotics and Dangerous  
20 Drugs Control,
- 21 b. the Department of Public Safety,
- 22 c. a police department,
- 23 d. a sheriff's office, and
- 24 e. a university or college campus police department.

1        3. The fee for the certification test shall be Two Hundred  
2 Dollars (\$200.00) and the annual recertification test fee shall be  
3 One Hundred Dollars (\$100.00) per canine team. A retest fee of  
4 Fifty Dollars (\$50.00) will be charged if the team fails the test.  
5 No such fee shall be charged to any local, state or federal  
6 government agency. The fees provided for in this paragraph shall be  
7 deposited to the credit of the CLEET Fund created pursuant to  
8 Section 1313.2 of Title 20 of the Oklahoma Statutes.

9        L. 1. Every canine team in the state trained to detect  
10 explosives, explosive materials, explosive devices, and materials  
11 which could be used to construct an explosive device shall be  
12 certified, by test, in the detection of such explosives and  
13 materials and shall be recertified annually so long as the canine is  
14 used for such detection purposes. The certification test and annual  
15 recertification test provisions of this subsection shall not be  
16 applicable to canines that are owned by a law enforcement agency if  
17 such canines are certified and annually recertified in the detection  
18 of explosives and materials by the United States Department of  
19 Defense. No employee of CLEET may be involved in the training or  
20 testing of a canine team.

21        2. The Council shall appoint a Bomb Dog Advisory Council to  
22 make recommendations concerning minimum standards, educational  
23 needs, and other matters imperative to the certification of canines  
24 and canine teams trained to detect explosives, explosive materials,

1 explosive devices and materials which could be used to construct an  
2 explosive device. The Council shall promulgate rules based upon the  
3 recommendations of the Advisory Council. Members of the Advisory  
4 Council shall include, but need not be limited to, a commissioned  
5 officer with practical knowledge of such canines and canine teams  
6 from each of the following:

- 7 a. the Department of Public Safety,
- 8 b. a police department,
- 9 c. a sheriff's office, and
- 10 d. a university or college campus police department.

11 3. The fee for the certification test shall be Two Hundred  
12 Dollars (\$200.00) and the annual recertification test fee shall be  
13 One Hundred Dollars (\$100.00) per canine team. A retest fee of  
14 Fifty Dollars (\$50.00) will be charged if the team fails the test.  
15 No such fee shall be charged to any local, state or federal  
16 government agency. The fees provided for in this paragraph shall be  
17 deposited to the credit of the CLEET Fund created pursuant to  
18 Section 1313.2 of Title 20 of the Oklahoma Statutes.

19 M. All tribal police officers of any Indian tribe or nation who  
20 have been commissioned by an Oklahoma law enforcement agency  
21 pursuant to a cross-deputization agreement with the State of  
22 Oklahoma or any political subdivision of the State of Oklahoma  
23 pursuant to the provisions of Section 1221 of Title 74 of the  
24 Oklahoma Statutes shall be eligible for peace officer certification

1 under the same terms and conditions required of members of the law  
2 enforcement agencies of the State of Oklahoma and its political  
3 subdivisions. CLEET shall issue peace officer certification to  
4 tribal police officers who, as of July 1, 2003, are commissioned by  
5 an Oklahoma law enforcement agency pursuant to a cross-deputization  
6 agreement with the State of Oklahoma or any political subdivision of  
7 the State of Oklahoma pursuant to the provisions of Section 1221 of  
8 Title 74 of the Oklahoma Statutes and have met the training and  
9 qualification requirements of this section.

10 N. If an employing law enforcement agency in this state has  
11 paid for CLEET training and the salary of a person while that person  
12 is completing in this state a basic police course approved by the  
13 Council and if within one (1) year after the date the person is  
14 commissioned with the law enforcement agency that person resigns and  
15 is hired by another law enforcement agency in this state, the second  
16 law enforcement agency or the person receiving the training shall  
17 reimburse the original employing law enforcement agency for the cost  
18 of CLEET training and salary paid to the person while completing the  
19 basic police course by the original employing law enforcement  
20 agency. If the person leaves the original employing law enforcement  
21 agency later than one (1) year, but less than two (2) years, after  
22 the date the person is commissioned with the law enforcement agency,  
23 the second law enforcement agency or the person receiving the  
24 training shall reimburse the original employing law enforcement

1 agency fifty percent (50%) of the cost of CLEET training and salary  
2 paid to the person while completing the basic police course by the  
3 original employing law enforcement agency. CLEET shall not be a  
4 party to any court action based on this provision.

5 O. The Council on Law Enforcement Education and Training, in  
6 its discretion, may waive all or part of any moneys due to the  
7 Council, if deemed uncollectable by the Council.

8 P. Peace officers, reserve peace officers, tribal peace  
9 officers, agencies, bail enforcers, security guards and private  
10 investigators shall maintain with the Council current mailing  
11 addresses and shall notify the Council, in writing, of any change of  
12 address or name. Notification of change of name shall require  
13 certified copies of any marriage license or other court document  
14 which reflects the change of name. Notice of change of address or  
15 telephone number must be made within ten (10) days of the effected  
16 change. Notices shall not be accepted over the phone. In any  
17 proceeding in which the Council is required to serve notice or an  
18 order on an individual or an agency, the Council may send a letter  
19 to the mailing address on file with the Council. If the letter is  
20 returned and a notation of the U.S. Postal Service indicates  
21 "unclaimed", or "moved", or "refused" or any other nondelivery  
22 markings and the records of the Council indicate that no change of  
23 address as required by this subsection has been received by the  
24



1 Council, the notice and any subsequent notices or orders shall be  
2 deemed by the Court as having been legally served for all purposes.

3 Q. All CLEET records of bail enforcers may be released only in  
4 compliance with this section and the Bail Enforcement and Licensing  
5 Act. All records in CLEET possession concerning other persons or  
6 entities shall be released only in compliance with this section and  
7 the Oklahoma Open Records Act.

8 SECTION 2. This act shall become effective November 1, 2026.

9 Passed the House of Representatives the 11th day of March, 2026.

10

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\_\_\_\_\_  
Presiding Officer of the House  
of Representatives

13

14 Passed the Senate the \_\_\_\_ day of \_\_\_\_\_, 2026.

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Presiding Officer of the Senate

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